

**Superior Court of the State of California
County of Orange**

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: July 24, 2026

The court will endeavor to post tentative rulings on the Court's website by 4:00 p.m. on the day before the Law and Motion Calendar. However, ongoing proceedings may prevent posting by that time. Please do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is typically heard on Fridays at 10 a.m., unless otherwise noted. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> , and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50	<i>Abarca vs. Hyundai Motor America</i>	The unopposed motion by Defendant Hyundai Motor America (“Defendant”) for an order compelling arbitration and staying the action is GRANTED. Defendant’s request to take judicial notice of the complaint filed in this action is denied. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may “simply call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9:53.1a.) A party moving to compel arbitration bears an initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165-166.) The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.” (<i>Bannister v. Marinidence Opco, LLC</i> (2021) 64 Cal.App.5th 541; see also <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1060 [holding same].) For this step, “it is not necessary to follow the normal procedures of document authentication.” (<i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218.) If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. Defendant met its initial burden of showing a written agreement to arbitrate the causes of

	action alleged in this action. (Ameripour Decl., ¶ 4, Exhibit 2, Section 4.) The arbitration provision in the Owner’s Handbook and Warranty Information (“Handbook”) covers any claim “related to or arising out of your vehicle purchase, use of your vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty.” (Ameripour Decl., Exhibit 2.) The agreement also provides in bold, capitalized font, “BY ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS.” (<i>Id.</i>) Although there is an opt-out provision, Plaintiff does not show Plaintiff exercised this option. Civil Code section 1589 expressly provides that “voluntary acceptance of the benefit of a transaction is equivalent to a consent to all the obligations arising from it, so far as the facts are known, or ought to be known, to the person accepting.” (Civ. Code, § 1589, emphasis added.) Plaintiff concedes Plaintiff knew about the express warranty by alleging Defendant “issued an express warranty to Plaintiff” and that Plaintiff delivered the Subject Vehicle for repair...no less than six (6) times for repair of nonconformity(s) to warranty.” (Complaint, ¶¶ 10 and 12.) These are judicial admissions, which are binding on Plaintiff, and remove the issue of consent “from the set of controverted issues” under the doctrine of judicial admissions. (<i>Womack v. Lovell</i> (2015) 237 Cal.App.4th 772, 786.) Because Plaintiff alleged that the purchase of the Subject Vehicle came with an express warranty, and Plaintiff is suing because
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		Defendant “failed to service or repair the Subject Vehicle to warranty after a reasonable number of attempts; being repairs within a reasonable time; and/or complete repairs within thirty (30) days so as to conform to the applicable warranties,” under the doctrine of judicial admission, Plaintiff cannot deny Plaintiff’s knowledge of the express warranty or Plaintiff’s voluntary acceptance of the benefits. (Complaint, ¶ 14.) The Court finds Defendant met its burden to show a written agreement to arbitrate the claims in this action. Plaintiff did not oppose the motion. Accordingly, Defendant’s unopposed motion is GRANTED. The action is stayed pending resolution of the parties’ arbitration. (9 U.S.C.A. § 3; Code Civ. Proc., § 1281.2.) The Case Management Conference is VACATED. The Court sets a Status Conference re Status of Arbitration for [DATE] at [TIME] in Department C21. Plaintiff is ordered to file and serve a status report regarding the arbitration no later than 10 court days prior to the Status Conference. Defendant shall give notice.
51	<i>Bank of America, N.A. vs. Austin</i>	The motion by Plaintiff Bank of America, N.A. (“Plaintiff”) for an order vacating the dismissal and entering judgment under the terms of the stipulated settlement of this case pursuant to CCP section 664.6 is CONTINUED. On June 3, 2026, the Court continued the hearing on this motion to allow Plaintiff to properly serve the notice and moving papers on Defendant.

		The Court noted in its June 3, 2026, Minute Order, Plaintiff served the notice of motion and supporting papers on Defendant Minda P. Austin (“Defendant”) by mail. (Proof of Service, ROA No. 33.) The Court also noted that on or about December 23, 2024, Defendant submitted a Substitution of Attorney, which was rejected by the Filing Clerk. Without a filed substitution of attorney, service on Defendant instead of Defendant’s attorney of record is not proper. (Code Civ. Proc., § 1015; see, Maxwell v. Cooltech, Inc. (1997) 57 Cal.App.4th 629, 632.) The Court ordered Plaintiff to serve a copy of the notice and moving papers on Defendant’s attorney. The Court also ordered Plaintiff to give notice to Defendant and Defendant’s attorney. Plaintiff did not file a proof of service showing notice of the June 3, 2026 ruling was served on Defendant or Defendant’s attorney. Plaintiff did not file a proof of service showing a copy of the notice and moving papers were served on Defendant’s attorney. The Court also notes Plaintiff filed two more sets of moving papers, which seek substantively the same relief as the initial set of moving papers. If Plaintiff intends to make any changes to the notice and/or moving papers, Plaintiff shall inform the Court as to what differences are being made to avoid wasting judicial resources in reviewing three sets of moving papers for the same requested relief. The hearing on this motion is continued to September 11, 2026 at 10:00 AM in Department C21. No later than August 5, 2026, Plaintiff
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		shall file a proof of servicing showing a copy of the notice and moving papers were properly served on Defendant's attorney. Plaintiff shall give notice of this ruling to Defendant and Defendant's attorney. No later than August 5, 2026, Plaintiff shall file a proof of service showing notice was properly provided to Defendant and Defendant's attorney.
52	<i>Escudero v. System Pavers, LLC</i>	Defendants System Pavers, LLC and SP Marketing, LLC's unopposed motion to seal their exhibits 1-5 filed with counsel's supplemental declaration in support of their reply to their motion to compel arbitration is GRANTED. A party requesting that a record be filed under seal must file a motion or application for an order sealing the record. The motion or application "must" be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." (Cal. Rules of Court, rule 2.551(b)(1).) The court may order that a record be filed under seal only if it expressly finds facts that establish that: there exists an overriding interest that overcomes the right of public access to the record; the overriding interest supports sealing the record; a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; the proposed sealing is narrowly tailored; and, no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).) The rules expressly implement the First Amendment principles espoused in <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178 (i.e., California recognizes a constitutional right of access to certain court

	documents grounded in the First Amendment) and establish a presumption that “court records . . . be open” unless the law requires confidentiality. (<i>Overstock.Com, Inc. v. Goldman Sachs Grp., Inc.</i> (2014) 231 Cal.App.4th 471, 486; see <i>McNair v. National Collegiate Athletic Assn.</i> (2015) 234 Cal.App.4th 25, 29.) Here, Defendants have met their burden of showing that the documents should be sealed. Defendants state that the email communications that are the subject of the exhibits contain privileged attorney-client communications and work product related to the Arbitration Agreement, which is/was the basis for Defendants’ Motion to Compel Arbitration. (Trotter Decl., ¶ 2, Exs. 1-5.) Defendants contend that if the unredacted Exhibits 1-5 are placed in the public court file, Defendants’ right to assert privilege over any attorney-client communications or work product concerning the subject-matter of Exhibits 1-5 will be effectively waived. (Trotter Decl., ¶ 5.) And “once privileged matter has been disclosed there is no way to undo the harm which consists in the very disclosure.” (<i>Raytheon Co. v. Superior Court</i> (1989) 208 Cal.App.3d 683, 686.) The request is narrowly tailored. While the content of the emails is redacted, the accompanying attorney declaration describes the subject matter and is publicly available. The Court finds that there exists an overriding interest that overcomes the right of public access to the record supporting the sealing of the records. A substantial probability exists that this
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		interest will be prejudiced if the record is not sealed. The Court therefore orders that the redacted exhibits may remain in the file as part of the public record, but the unredacted Exhibits 1-5 to the Supplemental Declaration of Julie R. Trotter in Support of Defendants’ Reply in support of its Motion to Compel Arbitration be filed and maintained under seal. (ROA 81.) Defendants shall give notice of the ruling.
53	<i>Off calendar</i>	
54	<i>Off calendar</i>	
55	<i>Le vs. Placentia-Yorba Linda Unified School District</i>	Plaintiff Lucy Le’s motions to compel Defendants Eunice Castano, Ann San Roman, Shaelee Hazlett, and Tonya Gorfillo to serve further responses to her requests for production of documents, set one, are DENIED. Code Civ. Proc., § 2031.310(b)(1) requires a party moving to compel further responses to document demands to set forth specific facts showing good cause justifying the discovery sought by the inspection demand. To establish “good cause,” the burden is on the moving party to show both: (1) relevance to the subject matter (e.g., how the information in the document would tend to prove or disprove some issue in the case); and (2) specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (See <i>Glenfed Develop. Corp. v. Superior Court (National Union Fire Ins. Co. of Pittsburgh, Pa.)</i> (1997) 53 Cal.App.4th 1113, 1117.)

		In addition, a party moving to compel production must also submit a separate statement pursuant to Cal. Rules of Ct., Rule 3.1345(c). Plaintiff here failed to file the requisite separate statements. Nor did she include the subject discovery requests and responses with her motions. Plaintiff also fails to establish good cause for compelling further responses. Plaintiff does not explain how the requested documents are relevant and/or why they are necessary for trial preparation. (See Code Civ. Proc., § 2031.310(b)(1).) Finally, Defendants each filed oppositions to Plaintiff's motions attaching their supplemental responses that were served on 6/24/26 to the requests. (Byerly Decl., Ex. 1.) Plaintiff did not file any reply briefs; there is no contention that these supplemental responses are not sufficient. Thus, the motions are moot given the supplemental responses. Defendants shall give notice.
56	<i>Off calendar</i>	
57	<i>Norris vs. Slidders</i>	The motion by Defendant Kenneth Slidders ("Defendant") for an order imposing issue or evidence sanctions, as well as monetary sanctions in the amount of \$4,255 against Plaintiff Leslie Nicole Norris ("Norris") and her attorneys of record, Rene Ucros of Wilshire Law Firm, PLC, jointly and severally, for her failure to appear at the properly noticed Defense Medical Examination on February 17, 2026 and continued abuse of the discovery process is denied in part and granted in part.

		As an initial matter, the Court notes the parties' proofs of service did not comply with CCP section 1013b. There were no objections to service of the papers. The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically service papers. "If a party is required to submit to a physical or mental examination under Articles 2 (commencing with Section 2032.210) or 3 (commencing with Section 2032.310), or under Section 2016.030, but fails to do so, the court, on motion of the party entitled to the examination, may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may, on motion of the party, impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2032.410.) "Although not expressly required by statute, courts have noted that, absent unusual circumstances, nonmonetary sanctions are warranted only if a party willfully fails to comply with a court order." (<i>Aghaian v. Minassian</i> (2021) 64 Cal.App.5th 603, 618-619.) There is no dispute that Defendant electronically served Defendant's Demand for Defense Medical Examination of Plaintiff Leslie Nicole Norris ("Demand") on January 8, 2026, on Plaintiff, that Norris did not respond to the Demand, and Norris did not appear at the examination. (Meredith Norris Decl., ¶¶ 6, 7, 10, 11, and 12, Exhibit D and Exhibit H.) There is also no dispute that after the Demand was served and before the scheduled examination date, Plaintiffs'
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	law firm transitioned the case to another team of attorneys within the same firm. (Id., Exhibits E and F; Kaddoura Decl., ¶ 2.) There is also no dispute that Defendant incurred a no-show fee of \$820 from the examining doctor. (Meredith Norris Decl., ¶ 11, Exhibit H.) Norris contends her attorneys were unaware of the examination. (Meredith Norris Decl., ¶ 11, Exhibit I.) However, Defendant emailed Plaintiffs’ new legal team at the same firm regarding the examination on February 9, 2026, and February 12, 2026. (Meredith Norris Decl., ¶¶ 7, 10, and 12, Exhibit G and Exhibit I.) Norris also contends Defendant should have taken the examination off calendar after receiving no response to the February emails regarding the examination. Norris offers no legal authority to support such a requirement. Norris did not object to the Demand, did not seek relief from waiver of any objections to the Demand, and agreed to waive notice for the examination. The parties appeared to have agreed to an new examination date of July 14, 2026. (Kaddoura Decl., ¶ 8.) Norris also offered to split the no-show fee of \$820. (Meredith Norris Decl., ¶ 21, Exhibit P; Kaddoura Decl., ¶ 7, Exhibit 2.) Through Defendant’s communications, Defendant was seeking information regarding Norris’ surgery and payment of the \$820 no-show fee. Defendant did not show issues or evidentiary sanctions would be warranted based on these circumstances. Accordingly, issues and evidentiary sanctions are not warranted at this
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		time. Defendant’s motion for issues and evidentiary sanctions is denied. Defendant’s motion for monetary sanctions is granted. Plaintiff Norris is ordered to pay monetary sanctions in the total amount of \$3,000 to Law Offices of Cullins & Grandy LLP within 30 days. Defendant shall give notice.
58	<i>Place vs. Sustayta</i>	The Court grants Defendant Mario R. Sustayta’s Motion for judgment on the pleadings as to the second through eighth causes of action in Plaintiff Dana M. Place’s Complaint. Plaintiff has 30 days leave to amend the second, third, fourth, fifth, and eighth causes of action only. <u>Legal Standard</u> A non-statutory motion for judgment on the pleadings “is, in effect, a general demurrer, the same rules apply.” (<i>Sofias v. Bank of America</i> (1985) 172 Cal.App.3d 583, 586.) The non-statutory motion may be brought on two grounds: that the court lacks subject matter jurisdiction, or that the complaint does not state facts sufficient to constitute a cause of action. (<i>Korchemny v. Piterman</i> (2021) 68 Cal.App.5th 1032, 1055.) The second of these grounds—the only ground invoked here—is identical to the corresponding statutory ground under Code of Civil Procedure section 438, subdivision (c)(1)(B)(ii). (<i>Ibid.</i>; see Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) To prevail, a defendant must show that the complaint fails to state a cause of action. (<i>Ibid.</i>)

	The scope of the Court’s review on such a motion is narrow. The grounds for the motion “must appear on the face of the challenged pleading or from matters that may be judicially noticed.” (<i>Coshow v. City of Escondido</i> (2005) 132 Cal.App.4th 687, 702.) The Court accepts as true the factual allegations properly pleaded and gives them a liberal construction, treating the pleading as admitting all properly pleaded material facts but not the contentions, deductions, or conclusions of fact or law a moving party may draw from them. (<i>Greif v. Sanin</i> (2022) 74 Cal.App.5th 412, 426.) <u>Merits</u> 1. The Statute of Limitations has run on the second cause of action for battery. Battery is governed by a two-year statute of limitations (“SOL”) pursuant to CCP § 335.1. Based on the Complaint, the battery is alleged to have occurred on June 5, 2021 (Compl. ¶ 100), i.e., more than 2 years prior to filing of Complaint on July 3, 2024. Essentially, Plaintiff does not dispute that the SOL has run. Rather, she argues that she can allege facts to show equitable estoppel. Plaintiff has not alleged estoppel in the Complaint. (See <i>Hopkins v. Kedzierski</i> (2014) 225 Cal.App.4th 736, (“equitable estoppel ... comes into play only after the limitations period has run and addresses the circumstances in which a party will be estopped from asserting the statute of limitations as a defense to an admittedly untimely action because his conduct has induced
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	another into forbearing suit within the applicable limitations period”). “In the statute of limitations context, equitable estoppel may be appropriate where the defendant's act or omission actually and reasonably induced the plaintiff to refrain from filing a timely suit. [Citation.] The requisite act or omission must involve a misrepresentation or nondisclosure of a material <i>fact</i> bearing on the necessity of bringing a timely suit.” (<i>Doe v. Marten</i> (2020) 49 Cal.App.5th 1022, 1028 [emphasis in original]; see <i>Lantzy v. Centex Homes</i> (2003) 31 Cal.4th 363, 385 [estoppel not warranted where the plaintiff failed to allege “facts indicating that defendants’ conduct directly prevented them from filing their suit on time”].) ““The essence of an estoppel is that the party to be estopped has by false language or conduct “led another to do that which he [or she] would not otherwise have done and as a result thereof that he [or she] has suffered injury.”” (<i>Steinhart v. County of Los Angeles</i> (2010) 47 Cal.4th 1298, 1315.) Plaintiff concedes the motion should be granted, but wants permission to amend. The Court grants that relief. As in the case of a demurrer, a judge must grant leave to amend if there is a reasonable possibility that the plaintiff can state a valid cause of action. (See <i>Ventura Coastal, LLC v Occupational Safety & Health Appeals Bd.</i> (2020) 58 Cal.App.5th 1, 32; <i>Hudson v County of Los Angeles</i> (2014) 232 Cal.App.4th 392, 408.) It is an abuse of discretion for a judge to deny leave to amend when there is a reasonable possibility that the defect in the pleading could be cured by amendment. (<i>Ventura Coastal, LLC v</i>
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	<i>Occupational Safety & Health Appeals Bd., supra</i>, 58 Cal.App.5th at 32; <i>Lowry v Port San Luis Harbor Dist.</i> (2020) 56 CA5th 211, 221.) Here, Defendant argues that any amendment would be a “sham pleading”. But there is a reasonable possibility that Plaintiff can amend. Thus, the Court is required to grant leave. The Motion is granted as to this claim, with leave to amend. 2. The third cause of action for malicious prosecution fails to state a claim. Citing no case law, Sustayta argues that he was not the “prosecutor” of the charges brought by the DA and prosecuted against Plaintiff. Sustayta is only alleged to have made certain statements, as a witness, concerning Plaintiff. (Compl. ¶ 80.) Plaintiff confirms that there is in fact a claim for falsely reporting to the police resulting in an arrest and charges. (See CACI 1500.) “Malicious prosecution consists of initiating or procuring the arrest and prosecution of another under lawful process, but from malicious motives and without probable cause.” (<i>Cedars-Sinai Medical Center v. Superior Court</i> (1988) 206 Cal.App.3d 414, 417, internal citation omitted.) “The remedy of a malicious prosecution action lies to recompense the defendant who has suffered out of pocket loss in the form of attorney fees and costs, as well as emotional distress and injury to reputation because of groundless allegations made in pleadings which are public records.” (<i>Sagonowsky v. More</i> (1998) 64 Cal.App.4th 122, 132, internal citations omitted.)
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		“[A] cause of action for malicious prosecution cannot be premised on an arrest that does not result in formal charges (at least when the arrest is not pursuant to a warrant).” (<i>Van Audenhove v. Perry</i> (2017) 11 Cal.App.5th 915, 917 [rejecting Rest.2d Torts, § 654. subd. (2)(c)].) “Cases dealing with actions for malicious prosecution against private persons require that the defendant has at least sought out the police or prosecutorial authorities and falsely reported facts to them indicating that plaintiff has committed a crime.” (<i>Sullivan v. County of Los Angeles</i> (1974) 12 Cal.3d 710, 720, internal citations omitted.) “When, as here, the claim of malicious prosecution is based upon initiation of a criminal prosecution, the question of probable cause is whether it was objectively reasonable for the defendant ... to suspect the plaintiff ... had committed a crime.” (<i>Greene v. Bank of America</i> (2013) 216 Cal.App.4th 454, 465.) Here, Plaintiff alleges that Sustayta was actively involved in causing Place to be arrested and prosecuted. (Compl., ¶107) The criminal proceeding ended in Place’s favor. (Compl., ¶108.) Place alleges on information and belief that Sustayta acted primarily for a purpose other than to bring Place to justice. (Compl., ¶109.) This is sufficient incorporating by reference the detailed factual allegations, including the specific, knowing falsehoods alleged in paragraphs 80.1 through 80.6 of the Complaint and the timing of Defendant’s report, which was made shortly after Defendant allegedly learned Place had retained
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	counsel to defend the unlawful detainer action he had filed against her. (Compl., ¶ 62.) However, Plaintiff admits in opposition that she did plead guilty in part: “Place’s separate guilty plea to disturbing the peace...” (Opp., 9:8-9.) On Reply, Defendant argues that since Plaintiff took a plea deal, there was no favorable termination of the charges for her, barring this claim. (See <i>Cote v. Henderson</i> (1990) 218 Cal. App. 3d 796 held, at the pleading stage: “[A]s a matter of law, ... the favorable termination which is essential to the plaintiff in a malicious prosecution action cannot be based on the dismissal of the criminal charges remaining after the defendant in a criminal proceeding has entered a plea” (<i>Id.</i> at 803–804.) But, Plaintiff says she can amend to expressly allege that her guilty plea charge arose from a wholly separate report by a different witness, a neighbor’s report of noise on a dock, and did not arise from any statement made by Defendant or his workers, all of which were dismissed. The Motion is granted as to this claim, with leave to amend. 3. The SOL has run on the fourth cause of action for intentional infliction of emotional distress (IIED). The statute of limitations for intentional infliction of emotional distress is two years. (CCP § 335.1 [“Within two years: An action for . . . injury to . . . an individual caused by the wrongful act . . . of another”]; <i>Wassmann v. S. Orange Cnty. Cmty. Coll. Dist.</i> (2018) 24 Cal. App. 5th 825, 852-53
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	["Intentional infliction of emotional distress has a two-year statute of limitations."].) At paragraph 77 of the Complaint, Plaintiff alleges that the statements to police have caused Plaintiff emotional distress; these statement were all made during 2020 and 2021. Thus, the 2-year statute of limitations for this claim expired well before the July 3, 2024 filing of the Complaint. She again essentially concedes that the SOL has run. But again, Plaintiff argues in opposition that she can allege equitable estoppel, as discussed above. The Motion is granted as to this claim, with leave to amend. 4. The SOL has run on the fifth cause of action for conversion. A claim for conversion is subject to the 3-year statute of limitations set forth in CCP section 338(c)(1). (<i>Bono v. Clark</i> (2002) 103 Cal. App. 4th 1409,1432-33 [3-year statute of limitations applies to conversion claims, triggered by the wrongful taking of property].) Here, the Complaint alleges that on June 3, 10, and 14, 2021, Sustayta refused to give Plaintiff access to her “personal belongings.” (Compl. ¶ 83). On June 25, 2021, Plaintiff’s movers allegedly attempted, but were unable, to retrieve her belongings. (Compl. ¶ 85; see also, ¶ 88 [“on or about September 22, 2020, Sustayta also took possession of other items of Personal Property that Place owned and had a right to possess.”].) Thus, the three years expired before the Complaint was filed.
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		In opposition, Plaintiff acknowledges that the SOL has run, but argues that there are two separate claims here. Plaintiff contends that the Complaint separately alleges an entirely different pattern concerning property that Place left behind during the course of her 2021 moves out of Defendant's various residences, which Defendant did not seize or wrongfully take at any specific moment, but which he came to possess in the ordinary course of the parties' cohabitation and separation. (Compl., ¶¶ 83-87, 89-90.) This is not clearly alleged in the Complaint, and the list of items includes those for which the SOL has run. The Motion is granted as to this claim, with leave to amend. 5. Plaintiff fails to state a claim in her sixth and seventh causes of action for intentional interference with contract and with prospective economic advantage. These claims are both subject to the 2-year statute of limitations set forth in CCP Section 339(1). (<i>Knoell v. Petrovich</i> (1999) 76 Cal. App. 4th 164, 168.) Paragraphs 126 and 132 of the Complaint allege that the operative act which cause these claims to arise was "the filing of the unlawful detainer action," which occurred substantially more than 2 years prior to the filing of the Complaint. Plaintiff concedes that the SOL has run but argues that she can allege equitable estoppel.
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	Defendant also argues that Plaintiff lacks standing because Plaintiff alleges that an entity Beyond the Bell LLC provided the business she contends Defendant interrupted. (See Compl., ¶¶68-74.) This judicial admission may be a problem for Plaintiff. Moreover, both causes of action allege the act of interference was “the filing of the unlawful detainer action.” (Compl. ¶¶ 126, 132–133.) The filing of an unlawful detainer complaint is a privileged communication in a judicial proceeding under Civil Code section 47(b). (<i>Action Apartment Assn., Inc. v. City of Santa Monica</i> (2007) 41 Cal. 4th 1232, 1249 [filing of eviction action privileged]; <i>Rubin v. Green</i> (1993) 4 Cal. 4th 1187, 1193–1196 [litigation privilege bars interference claims based on litigation conduct].) This argument was raised for the first time on reply. Thus, the Court is prepared to hear argument from Plaintiff on the litigation privilege. The Motion is granted based on the SOL, an apparent lack of standing, and the litigation privilege. Leave to amend is denied. 7. The SOL has run on the eighth cause of action for goods and services rendered. This claim is barred by the 2-year statute of limitations applicable to alleged oral obligations. (CCP § 339.) The Complaint plainly alleges that these goods and services were rendered, but not paid for, by no later than “September 2021.” (Compl., ¶ 40.)
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		Plaintiff does not dispute again that the SOL had run. As set forth above, leave to amend is granted to address equitable estoppel. Thus, where leave is permitted, it is limited to removing stale claims and pleading equitable estoppel. Defendant is ordered to serve notice of this ruling.
59	<i>Shah vs. Gordon</i>	Defendant Kimberly Gurden, erroneously sued as Kimberly Gordon, seeks an order compelling Plaintiff Minal Shah to serve initial and verified responses to Form Interrogatories, Set One, and Demand for Production of Documents, Set One. Defendant also asks that the Requests for Admission, Set One, be deemed admitted. A. Demand for Production of Document, Set One. A. Demand for Production of Document, Set One The Court grants Defendant Kimberly Gurden's unopposed Motion to compel responses to her Demand for Production of Documents, Set One, from Plaintiff Minal Shah. Plaintiff is ordered to serve Code-compliant, verified responses within 30 days of notice of this Order. All objections have been waived. Plaintiff shall also serve all responsive documents concurrently with the responses. <u>Legal Standard</u> A party may move for an order compelling responses to a demand for inspection at any time

		“[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response.” (Code Civ. Proc. § 2031.300(b).) Failing to respond to a CCP § 2031.010 demand within the time permitted waives all objections to the demand—including claims of privilege and work product. (CCP § 2031.300(a).) Where there has been no timely response to a CCP § 2031.010 demand, the first thing the demanding party must do is to seek an order compelling a response. (CCP § 2031.300.) No showing of “good cause” is required. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 8:1487.) <u>Merits</u> Here, on January 28, 2026, Defendant served set one Form Interrogatories, Special Interrogatories, Requests for Admission, and Demand for Production of Documents on Plaintiff (directly because he is in pro per). (Macdonald Dec., ¶3, Ex. A to each Motion.) Plaintiff’s responses to the set one discovery demands were due on February 27, 2026. Plaintiff failed to respond to discovery by February 27, 2026. (Macdonald Dec. ¶¶4-5.) Thus, the Motion is granted. B. Form Interrogatories, Set One The Court grants Defendant Kimberly Gurden’s unopposed Motion to compel responses to her Form Interrogatories, Set One, from Plaintiff Minal Shah.
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Plaintiff is ordered to serve Code-compliant, verified responses within 30 days of notice of this Order. All objections have been waived.

Legal Standard

A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.”

(Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, Plaintiff waived “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court (Markum)* (1980) 111 Cal.App.3d 902, 905-906.)

Merits

Here, on January 28, 2026, Defendant served set one Form Interrogatories, Special Interrogatories, Requests for Admission, and Demand for Production of Documents on Plaintiff (directly because he is in pro per). (Macdonald Dec., ¶3, Ex. A to each Motion.) Plaintiff’s responses to the set one discovery demands were due on February 27, 2026. Plaintiff failed to respond to discovery by February 27, 2026. (Macdonald Dec. ¶¶4-5.)

Thus, the Motion is granted.

C. Requests for Admission, Set One

The Court grants Defendant Kimberly Gurden's unopposed Motion to deem her Requests for Admissions, Set One admitted against Plaintiff Minal Shah.

Legal Standard

Responses to requests for admission are due 30 days after service (plus appropriate time for method of service). CCP §§ 1012, 1013, 2033.250(a). If the party to whom the requests for admission are directed fails to respond, that party waives all objections, including claims of privilege and work product protection. CCP § 2033.280(a).

A propounding party may ask the court for an order that deems the matters contained in the requests for admission admitted if the receiving party fails to respond to the requests for admission. (CCP § 2033.280(b).) The court shall grant the order unless it finds that the party to whom the requests were directed has served responses in conformance with CCP § 2033.220 before the hearing on the motion. (CCP § 2033.280(c).)

Merits

Here, on January 28, 2026, Defendant served set one Form Interrogatories, Special Interrogatories, Requests for Admission, and Demand for Production of Documents on Plaintiff (directly because he is in pro per). (Macdonald Dec., ¶3, Ex. A to each Motion.) Plaintiff's responses to the set one discovery demands were due on February 27, 2026. Plaintiff failed to respond to discovery by February 27, 2026. (Macdonald Dec. ¶¶4-5.)

		There is no evidence that Plaintiff served any responses, let alone substantially compliant responses. Thus, the Motion is GRANTED. Defendant shall serve notice of this Order.
60	<i>Steadfast Insurance Company vs. William Lyon Homes, Inc.</i>	The motion of defendants William Lyon Homes, Inc. (“WLHI”) and Taylor Morrison, Inc. (“TM”) for summary judgment or adjudication on plaintiff Steadfast Insurance Company’s complaint is DENIED. [ROA #133.] The court did not consider new evidence offered on reply. Code Civ. Proc. §437c(b)(4). The requests for judicial notice are granted. Plaintiff’s evidentiary objections are overruled as to nos. 1, 6, and 13; they are sustained as to the remaining. Defendant’s evidentiary objection is overruled. <u>Plaintiff Steadfast’s Complaint</u> In this action, Steadfast has sued WLHI and TM for reimbursement of money spent to settle a claim covered by Steadfast’s insurance policies, each with a self-insured retention (“SIR”) provision, because Defendants had not contributed their unused SIR money to the settlement. [Complaint (ROA #2), ¶¶ 6-8.] The Complaint alleges the following: 12. Under Section IV (Self Insured Retention), each of the Steadfast Policies

		states: “Our obligations under SECTION I - COVERAGES to pay damages, ‘defense expenses’ or ‘repair costs’ applies only to the amounts of damages, ‘defense expenses’ or ‘repair costs’ in excess of any Self-Insured Retention amounts stated in the Declarations....” 13. Each of the Steadfast Policies states: “It is a condition precedent to our liability that you make actual payment of the ‘self insured retention’ amount for Each ‘Occurrence’/‘Construction Occurrence’/Offense until you have paid ‘self insured retention’ amounts equal to the Each ‘Occurrence’/‘Construction Occurrence’/Offense amount shown in the Declarations page” 14. Each of the Steadfast Policies also states: “The ‘self insured retention’ amounts of this policy apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations” and “[p]ayment by others, including but not limited to additional insureds or insurers, do not serve to satisfy the ‘self insured retention’ amount(s).” [Complaint, ROA 2.] Plaintiff Steadfast further alleges that Defendants requested that Steadfast fund a settlement of the claims by Serafina Community Association (“Association”) against Defendants relating to the Serafina project located in Eastvale, California. [Complaint, 16.] Defendants
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	asserted that their payments of claims in the amount of \$500,000 satisfied their SIR obligations and triggered Plaintiff Steadfast's obligation to fund the settlement of claims. [<i>Id.</i>, ¶ 19.] Steadfast questioned this position because Defendants had not paid the full amount of the applicable SIRs under the Steadfast Policies for every annual period implicated by the claims in the Underlying Action. [<i>Id.</i>, 19,] In response to Defendants' request that Steadfast take them out of harm's way, under a reservation of rights, Steadfast agreed to fund a multi-million dollar settlement to pay the Association to settle the claims against Defendants in the Underlying Action. [Complaint, ¶ 20-22.] At the time Steadfast paid to settle the Underlying Action, Defendants had not paid the applicable SIR amounts for one or more of the annual periods in the Steadfast Policies implicated by the claims in the Underlying Action. [<i>Id.</i>, ¶ 23.] Steadfast asserts four causes of action for: (1) recoupment/reimbursement; (2) accounting; (3) declaratory relief re annual per occurrence SIRs; and (4) declaratory relief re per construction occurrence SIRs. <u>Legal Standard on Motion for Judgment or Adjudication</u> Under Code of Civil Procedure section 437, a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative
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	defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Code Civ. Proc. §437c(f)(1). “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (<i>Id.</i>) For summary adjudication of a claim of damages, other than punitive damages, that does not entirely dispose of a cause action, defense, or issue of duty, the parties must comply with Code of Civil Procedure section 437c(s)(1). A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850. “A prima facie showing is one that is sufficient to support the position of the party in question.” <i>Id.</i> at 851. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. Code Civ. Proc. § 437c(p)(2). A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. <i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597. Alternatively, a moving defendant can show that a cause of action “cannot be established” by submitting evidence – such as discovery admissions and responses – that the
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	plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at 854-855. See also <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 (finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery); <i>Scheidig v. Dinwiddie Const. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 (finding <i>Union Bank</i> rule only applies where discovery requests are broad enough to elicit all such information); <i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442. Once the defendant's burden is met, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575. To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. <i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163. Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. <i>Doe v. Salesian Society</i> (2008) 159 Cal.App.4th 474, 481; <i>Bushling v. Fremont Med. Center</i> (2004) 117 Cal.App.4th 493, 510. The moving party's affidavits are strictly construed while those of the opposing party are liberally construed. <i>Villacres v. ABM Industries, Inc.</i>, 189 Cal.App.4th at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. <i>Id.</i> ///
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Discussion

**First Cause of Action for
Recoupment/Reimbursement**

Availability of Relief

In *Blue Ridge Insurance Company v. Jacobsen*, the California Supreme Court answered the question “[w]hether an insurer defending a personal injury suit under a reservation of rights may recover settlement payments made over the objection of the insured when it is later determined that the underlying claims are not covered under the policy.” *Blue Ridge Ins. Co. v. Jacobsen* (2001) 25 Cal.4th 489, 492 (internal quote marks removed).

Relying heavily on the principles, reasoning, and analytic framework in *Buss v. Superior Court* (1997) 16 Cal.4th 35 (*Buss*), where the Court held that an insurer may seek reimbursement from the insured for defense costs that can be allocated solely to claims not even potentially covered, in *Blue Ridge* the Court found that an insurer may seek reimbursement for monies paid in settlement for an uncovered claim. 25 Cal.4th at 502.

[In *Buss*, w]e concluded reimbursement should be available because **the insurer had not bargained to bear these costs and the insured had not paid the insurer premiums for the risk.** (*Id.* at pp. 50, 51, 65 Cal.Rptr.2d 366, 939 P.2d 766.) “The insurer therefore has a right of reimbursement that is implied in law as quasi-contractual, whether or not it has one that is implied in fact in the policy as contractual. As stated, **under the law of restitution such a**

right runs against the person who benefits from ‘unjust enrichment’ and in favor of the person who suffers loss thereby. The ‘enrichment’ of the insured by the insurer through the insurer's bearing of unbargained-for defense costs is inconsistent with the insurer's freedom under the policy and therefore must be deemed ‘unjust.’ ” (*Id.* at p. 51, 65 Cal.Rptr.2d 366, 939 P.2d 766, fn. omitted.)

Blue Ridge Ins. Co. v. Jacobsen (2001) 25 Cal.4th 489, 501 (bold added).

Further, the Court found that the right to reimbursement was implied by the terms of the insurance contract. *Id.* at 503.

In holding the insurer had a right to reimbursement, the California Supreme Court rejected the insured's demand that “that Blue Ridge settle the case without any recourse against the Jacobsens should the claim not be covered.” *Id.* at 504.

Consistent with the facts and its holdings in the case, the California Supreme Court held that “[an insurer] satisfie[s] the prerequisites for seeking reimbursement for noncovered claims included in a reasonable settlement payment [by]: (1) a timely and express reservation of rights; (2) an express notification to the insureds of the insurer's intent to accept a proposed settlement offer; and (3) an express offer to the insureds that they may assume their own defense when the insurer and insureds disagree whether to accept the proposed settlement.” *Blue Ridge Ins. Co. v. Jacobsen, supra*, 25 Cal.4th at 502.

	Focusing on the case specific language in <i>Blue Ridge</i>, Defendants argue that Steadfast has no right to reimbursement because it did not pay money to settle uncovered claims – the SIRs not being exclusions from coverage. Further, Defendants argue, since there was no risk of damages in the underlying action exceeding coverage, Steadfast was at no risk of a bad faith claim (that is, claim for bad faith refusal to settle where non-settlement led to an award exceeding the policy limits) and thus was not in the Catch-22 situation described in <i>Blue Ridge</i>. [See Motion MPA (ROA #133) at 16-20; Reply (ROA #159) at 3-6.] From here, Defendants argue that since Steadfast cannot meet the criteria of <i>Blue Ridge</i> as there were no uncovered claims settled and no apparent risk of exposure to a bad faith claim, then it is not entitled to reimbursement at all – regardless of whether it paid money beyond what it was obligated to under the policies. [See Reply at 6-7.] In short, Defendants contend that an insurer may not seek reimbursement for any overpayment except one to defend or settle uncovered claims, arguing that <i>Blue Ridge</i> sets out the exclusive terms for any reimbursement from an insured to an insurer. But there is no language in <i>Blue Ridge</i> suggesting the exclusion of other reimbursement as argued by Defendants. Indeed, in its expansion of reimbursement rights from money paid to defend an uncovered claim (<i>Buss</i>) to money paid to settle an uncovered claim, the California Supreme Court manifestly recognized that it is the principal of unjust enrichment, rather than the particular payment involved, that gives rise to a right to reimbursement. Defendants attempt
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	to limit Steadfast’s right to seek reimbursement to the facts presented in <i>Blue Ridge</i> is not supported by that case. Nowhere in that case does the Court address reimbursement under the facts presented here. <i>Cordero v. Ghilotti Construction Co., Inc.</i> (2026) 119 Cal.App.5th 1105, 1120 (“It is well established that a case is not authority for a proposition that is not raised or addressed.”)(citation omitted). Moreover, there <i>is</i> a case that addresses the fact pattern presented here. In <i>Harbor Ins. Co. v. City of Ontario</i> (1991) 231 Cal.App.3d 927, the Harbor Insurance Company issued the City of Ontario an umbrella liability policy with a limit of \$1,000,000 per occurrence. <i>Id.</i> at 930. The policy provided for a \$100,000 self-insured retention. <i>Id.</i> Prior to trial, defense counsel for the City informed their client that it faced substantial exposure to an adverse verdict as high as \$2,000,000. <i>Id.</i> Harbor Insurance recommended that the City settle the matter for \$400,000. <i>Id.</i> The City consequently granted Harbor Insurance permission to settle the matter for \$400,000, but qualified that permission by stating that the City would not tender what remained of its self-insured retention. <i>Id.</i> Notwithstanding the City's refusal to do so, Harbor Insurance entered into an agreement with the plaintiff to settle the matter for \$360,000. <i>Id.</i> at 931. Harbor Insurance funded the settlement. <i>Id.</i> at 930. The City refused to tender the remaining portion of its self-insured retention. <i>Id.</i> Harbor Insurance subsequently brought a declaratory judgment action seeking a determination of whether the City was required to tender its self-insured retention. <i>Id.</i> The trial
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	court ruled that Harbor Insurance was entitled to recover the self-insured retention. <i>Id.</i> at 932. The City appealed. On appeal, the court of appeal rejected the City's argument that it gave its permission to Harbor Insurance to settle the matter, but not its agreement so as to commit itself to the self-insured retention pursuant to the policy. See <i>id.</i> at 935. The court, focusing on that policy's cooperation clause, reasoned that once the City permitted the settlement to take place, “defendant in substance agreed to it, and once having done that, there is no way it could logically or legally contend that its self-insured retention was not committed.” <i>Id.</i> at 934. The court set forth the policy underpinnings of its holding as follows: “were we to countenance the interpretation urged by defendant, i.e., that it could permit but not agree to the settlement, it would accord the insured the power unilaterally and arbitrarily to negate the self-insured retention feature of the policy in those instances where the insurer wished to settle because the projected damages exposure penetrated the floor of the excess coverage. If the insured were to be accorded such power, it could yield a result at substantial variance with actuarial reality and the premium paid for the policy.” <i>Harbor Ins.</i> at 935 (italics in original; bold added). While this case pre-dates <i>Blue Ridge</i>, it relies on the same premise: the unjust enrichment of an insured getting the benefit of insurance that it did not pay for and that the insurer did not accept
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	the risk of. See, again, <i>Blue Ridge Ins. Co. v. Jacobsen</i> (2001) 25 Cal.4th 489, 501. The principal of unjust enrichment undergirds both <i>Blue Ridge</i> and <i>Harbor Insurance</i>. That principal is implicated by the allegations of Steadfast's complaint that, with Defendants' acquiescence and under a reservation of rights, Steadfast paid money to settle an underlying claim beyond the terms of the applicable insurance policies. Defendants have not made a prima facie showing negating these allegations of fact. Accordingly, putting aside for the moment the issue of the statute of limitations discussed below, there remains a triable issue of fact whether Steadfast is entitled to reimbursement. <i>Statute of Limitations</i> Defendants' second argument is that Steadfast's reimbursement claim is barred by the statute of limitations. Defendants contend that the statute of limitations for an action for an insurer to recoup money paid in settlement on behalf of an insured is two years as an obligation not arising out of a writing. Code of Civil Procedure section 339. For purposes of this motion only, Steadfast has accepted the premise that a two-year statute of limitations applies. [Opp. (ROA #151) at 23 n.11.] Accordingly, the issue here is when Steadfast's action for recoupment accrued. There is the legal question as to what act triggers accrual; then there is the factual question of when, in this case, that occurred.
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	Defendants cite no law as to when an action for reimbursement based on the funding of a settlement agreement accrues. In their motion papers, they assume it is the date the checks to pay the settlement were issued. [Motion MPA at 13:4-10 (statement of facts); UMF (ROA #123) nos. 19-20; Brower Decl., ¶¶12, 13 and Ex. 8. See also Steadfast’s Responsive UMF (ROA #153).] In reply Defendants assert that the claim accrued a few days earlier when WLHI’s Executive Vice President signed the settlement agreement. [Reply at 2 n. 1, 11.] Defendants do not respond to Steadfast’s citation of legal authority that a claim for reimbursement of funds accrues when payment is made – which is when the check clears rather than when it was issued. [Opp. (ROA #151) at 23 n.12.] <i>U. S. Cold Storage v. Matson Navigation Co.</i> (1984) 162 Cal.App.3d 1228, 1231 (“Under well-established California law, however, a cause of action for equitable indemnity arises only when the indemnitee actually incurs a loss by payment of the underlying claim or judgment”); <i>Long Beach Memorial Medical Center v. Allstate Ins. Co.</i> (2023) 95 Cal.App.5th 710, 718 (finding, in an insurance dispute as to whether insurer paid settlement without paying hospital’s medical lien, that delivery of check is not payment: “‘a check of itself is not payment until cashed’”)(multiple citations omitted); <i>Navrides v. Zurich Ins. Co.</i> (1971) 5 Cal.3d 698, 706 (to same effect). There is no evidence presented as to when Steadfast’s check(s) in payment of the settlement agreement cleared. Accordingly, there remains a question of fact as to whether Steadfast’s claim for recoupment/reimbursement is barred by the statute of limitations.
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		Based on all of the foregoing, Defendants' motion for summary adjudication of Steadfast's first cause of action for recoupment/reimbursement is denied. Second through Fourth Causes of Action for Accounting and Declaratory Relief Defendants' arguments as to these causes of action are that they fall with the recoupment cause of action for the same reason it falls. [Motion MPA at 20-21, 24-25; Reply at 10-11.] Accordingly, for the reasons discussed above, the motion for summary adjudication of these causes of action and the motion for summary judgment are denied. Defendant shall give notice of this ruling.
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